

Presiding Officer Memorandum



To The Board of Directors
From Branding & Outreach
Subject Conforming the Chair's office to RCW 24.03A.585 at the organizational meeting

THE QUESTION

Washington's officer statute states that the officers of a nonprofit corporation "consist of a president, secretary, and treasurer, and other officers as may be authorized by the articles, the bylaws, or the board" (RCW 24.03A.585(1), verified against the published text). The statute names the office of president; no subsection permits a different title to substitute for it.

Resolution 2 answers it: the Chair of the Board is and serves as the president of the corporation within the meaning of RCW 24.03A.585, holding that office under the title Chair of the Board. The office is held, not merely performed, so the record answers the statute on its face.

WHY IT SHOULD BE SETTLED

Two upcoming moments put the question in front of outside readers. The bank holding the corporation's account may ask who its president is, and the exemption application to the IRS lists the corporation's officers. In both cases, "the office is vacant, but its functions are performed" invites a follow-up question; "the Chair is the president, serving under the title Chair of the Board" ends the inquiry. The fix costs one resolution and changes no name, no title, and no person's duties.

THE FIX

Resolution 2 carries the text set out on the following page; adopt it at the organizational meeting. It declares that the office of president is held by the Chair, under the Chair's existing title. The statutory office is filled; the corporation's titles stay exactly as they are; and the prohibition on one person holding both president and secretary (RCW 24.03A.585(3)) remains satisfied, since the Secretary does not serve as Chair.

HOW TO DO IT

1. State it on the meeting notice. Because the Chair is a Director, electing the Chair as president is a Major Action under Bylaws Section 5.9: the notice names it under Section 5.5 and it passes by two-thirds of the Directors then in office.
2. Adopt the resolution; the Secretary records it in the minutes and conforms the corporate records.
3. Confirm the wording at the attorney-review pass already scheduled on the adoption checklist, before the exemption application is filed.

EXHIBIT · TEXT CARRIED IN RESOLUTION 2

RESOLVED FURTHER, that the Chair of the Board is and serves as the president of the corporation within the meaning of RCW 24.03A.585, holding that office under the title Chair of the Board, and that the office of president is thereby filled for all purposes of the Washington Nonprofit Corporation Act.

RECOMMENDATION

Adopt with Resolution 2 at the organizational meeting, before the exemption application is filed.

Enters the minutes upon adoption of Resolution 2.